

JUDGMENT SHEET
PESHAWAR HIGH COURT, PESHAWAR
JUDICIAL DEPARTMENT
Civil Revision No.27-P/2017.

Muhammad Iqbal Vs. Abdul Khaliq & another.

Date of hearing **21.05.2026.**

Mr. Inayat-ur-Rehman, Advocate, for the petitioner.

Syed Naveed Ali Shah, Advocate, for the respondents.

JUDGMENT

MUHAMMAD NAEEM ANWAR, J: - Muhammad Iqbal, the petitioner, through the instant Civil Revision, has called in question the legality, propriety, and correctness of the judgment dated 17.10.2016, passed by the learned Additional District Judge-VIII, Peshawar, whereby Civil Appeal No. 10/13 of 2012, instituted by Basheer Maseeh (respondent No.2) against the judgment and decree dated 09.06.2012 rendered by the learned Civil Judge-XXVI, Peshawar, was partially allowed. Through the impugned judgment, liability for payment of arrears of rent amounting to Rs. 54,000/-, calculated for the period from 12.12.2002 to 12.12.2005 @ Rs. 1,500/- per month, was shifted from respondent No.2 to the present petitioner. Simultaneously, Appeal/Cross-Objection No.15/13 of 2012, preferred by Abdul Khaliq (respondent No.1/decreed-holder), was also partially allowed whereby respondent No.2 was held responsible for payment of outstanding rent to the decree holder (respondent No.1) was converted against the present petitioner instead of respondent No.2.

Alongwith petition, the petitioner filed C.M. No. 430-P/2017, seeking permission to place on record certain documents appended therewith on the ground that the same were essential for the just adjudication of the matter. The documents consist of attested copies forming part of the judicial record. Moreover, the respondents did not contest the said application. Consequently, the application is allowed, and the documents appended therewith shall form part of the record of the instant Civil Revision.

2. Briefly stated, the factual background giving rise to the present controversy is that Abdul Khaliq (respondent No.1) instituted an ejectment application bearing No. 56/RC under Section 13 of the West Pakistan Urban Rent Restriction Ordinance, 1959, on 24.02.2005, against Basheer Maseeh (respondent No.2, now deceased), Muhammad Iqbal (present petitioner), and Muhammad Ali, Tailor Master (not a party to the present proceedings), seeking ejectment from a residential house situated in Khattak Colony, behind Railway Police Line, Kohat Road, Peshawar City, on the grounds of default in payment of rent and unlawful subletting.

It was alleged that the premises had originally been let out to Basheer Maseeh through a rent deed dated 22.09.2001, at a monthly rent of Rs. 1,500/-, but the said tenant, in collusion and fraud, had unlawfully transferred possession to the present petitioner, who subsequently handed over possession to Muhammad Ali, Tailor Master.

The ejectment proceedings were vigorously contested by the present petitioner, who disputed the existence of the landlord-tenant relationship and asserted independent possession over the property. Consequently, a specific issue was framed regarding the existence of such relationship. After recording evidence, the learned Rent Controller, vide judgment dated 08.06.2006, allowed the ejectment petition and directed the present petitioner to hand over vacant possession of the premises to respondent No.1 within two months.

The order of the learned Rent Controller was assailed in appeal before the learned District Judge, Peshawar, which was entrusted to the learned Additional District Judge-VIII, Peshawar, where the appeal was dismissed through judgment dated 07.04.2007. The petitioner thereafter invoked the constitutional jurisdiction of this Court through Writ Petition No. 809/2007, which too was dismissed on 13.02.2013. Subsequently, Civil Petition No. 170-P/2013 filed before the august Supreme Court of Pakistan was dismissed as withdrawn on 14.10.2014.

The petitioner also filed objections in execution proceedings, which were dismissed by the learned Executing Court on 26.09.2013. The appellate forum upheld the said order vide judgment dated 12.03.2014, while Civil Revision No. 783-P/2013, preferred before this Court, was ultimately dismissed for non-prosecution on 29.09.2015.

3. It is also pertinent to mention that the present petitioner instituted a suit for declaration, damages, permanent injunction, and ownership/possession, asserting himself to be the owner in possession of the disputed residential house. However, the said suit was dismissed by the learned Civil Court vide judgment dated 20.04.2013. The appeal preferred thereagainst was subsequently withdrawn on 27.05.2014, rendering the findings final. Separately, respondent No.1 instituted a suit on 12.12.2005 for recovery of arrears of rent against Basheer Maseeh, Muhammad Iqbal, and Muhammad Ali, contending that respondent No.2 was the original tenant under the rent deed dated 22.09.2001, liable to pay rent @ Rs. 1,500/- per month, and had unlawfully delivered possession to the present petitioner in collusion, who later inducted Muhammad Ali. It was further asserted that the ejectment order had already attained finality and arrears of rent from 22.09.2001 to 30.11.2005 remained unpaid.

The suit was contested by the present petitioner as well as respondent No.2 through separate written statements. In the controversy, Issues No.5 and 6 were of particular significance, reproduced as under:

- (i) Whether defendant No.1 executed a rent deed dated 22.09.2001 in favour of the plaintiff?
- (ii) Whether defendant No.1, after vacating possession of the disputed house, fraudulently handed over possession to defendant No.2 without the permission of the plaintiff?

4. Upon conclusion of evidence, the learned Civil Judge-XXVI, Peshawar, vide judgment dated 09.06.2012, decreed Suit No. 93/1 of 2005 against Basheer Maseeh, directing payment of Rs. 54,000/- towards arrears of rent for the period from 12.12.2002 to

12.12.2005 @ Rs. 1,500/- per month. Aggrieved thereof, respondent No.2 preferred Civil Appeal No. 10/13 of 2012, whereas respondent No.1/decreed-holder filed Appeal/Cross-Objection No.15/13 of 2012, seeking modification of the decree to the effect that liability be fastened upon the present petitioner instead of respondent No.2. Both matters were decided through a consolidated judgment dated 17.10.2016, whereby respondent No.1 was held entitled to recover the arrears of rent from the present petitioner. Hence, the instant Civil Revision.

5. Learned counsel for the petitioner contended that the cross-objections filed by respondent No.1 were hopelessly time-barred and could not legally be treated as cross-objections within the contemplation of Order XLI Rule 22, C.P.C. It was further argued that the suit for recovery of rent could not lawfully be decreed against the petitioner, who admittedly was not a tenant under respondent No.1. Reliance was placed upon the cases of *Muhammad Tabish Naeem Khan v. Additional District Judge, Lahore & others* (2014 SCMR 1365), *Diamond Industries Limited v. Appellate Bench of the Securities and Exchange Commission of Pakistan & others* (2002 CLD 1714), *Muhammad Anwar v. Dr. Gohar Ali* (2007 CLC 621) and *Abdul Malik v. Province of Sindh through Secretary (Revenue) & others* (2023 YLR 414).

6. Despite service through cellular contact, Victor Maseeh, legal heir of deceased respondent No.2, failed to appear and was proceeded against ex parte. Arguments advanced by learned counsel for respondent No.1/decreed-holder, who supported the impugned judgment, were also heard.

7. I have heard the learned counsel for the parties at considerable length and have meticulously examined the record annexed with the petition as well as the documents appended through the Civil Miscellaneous application.

8. It is an admitted position that possession of the rented premises has already been restored to respondent No.1 through execution proceedings. It is equally significant that during review proceedings, the learned appellate Court vide judgment dated 22.06.2017 held respondent No.1 entitled to recovery of

outstanding rent until actual delivery of vacant possession. As regards the first contention that the cross-objections were barred by time, it is evident from the record that the same were adjudicated through a consolidated judgment alongside the principal appeal preferred by deceased respondent No.2. Since the learned trial Court had not saddled the present petitioner with liability despite the peculiar factual background, respondent No.1 was justified in challenging that aspect through cross-objections while the principal appeal remained sub judice. Therefore, the objection regarding limitation does not advance the petitioner's case for two-fold reasons:

A) **Under Order XLI Rule 22 of the Code of Civil Procedure (CPC)**, a respondent, who may be the primary beneficiary of the decree under challenge, is given a dual right:

- To support the decree on any of the grounds decided against them in the lower court.
- To take any cross-objection to the decree which they could have taken by way of a regular appeal.

Because a cross-objection is treated as an independent appeal in disguise, Order XLI Rule 22(4) explicitly provides that even if the original appeal is dismissed as withdrawn or dismissed for default, the cross-objection can still be heard and determined on its merits.

B) Order XLI Rule 22(1) typically stipulates that cross-objections should be filed within one month from the date of service of notice of the hearing of the appeal on the respondent (or within such further time as the Appellate Court may see fit to allow).

However, the law strictly avoids letting mere technicalities or procedural delays choke substantive justice. The rule that a cross-objection cannot be dismissed on the ground of limitation while the main appeal is pending is grounded in the following legal realities:

I. Judicial Discretion to Extend Time.

The phrase "*or within such further time as the Appellate Court may see fit to allow*" explicitly grants the court wide discretion to condone delays in filing cross-objections. As long as the main appeal is pending, the court remains "seized of the matter." Dismissing a cross-objection for limitation while the main case is still open defeats the purpose of settling the entire dispute comprehensively.

II. Prevention of Multiplicity of Proceedings.

The very purpose of Order XLI Rule 22 is to bring all conflicting claims regarding a single decree before the same court at the same time. If the court rejects a cross-objection solely due to a minor delay while the main appeal is still being actively litigated, it forces the respondent to file a formal separate appeal along with a delay condonation application, creating unnecessary, fragmented litigation.

III. Substantive Justice Over Technicality.

When an appeal is pending, the appellate court evaluates the correctness of the entire decree. Because the cross-objection is part and parcel of the same record, it is an accepted canon of procedural law that technical rules of limitation should be applied liberally to ensure that the respondent's grievances are heard alongside the appellant's claims.

Hence, it is held that, principle of civil jurisprudence that cross-objections filed under Order XLI Rule 22 of the Code of Civil Procedure are independent in character and analogous to a cross-appeal. While a statutory period of limitation is prescribed for preferring such objections, this rule cannot be weaponized to stifle substantive adjudication. As long as the principal appeal remains pending and alive before the Appellate Court, a cross-objection cannot be summarily rejected or left undecided on the rigid altar of limitation. The court's power to extend time under Rule 22(1) must be exercised liberally to prevent the fragmentation of claims. Because the court is already seized of the entire subject matter of the decree, treating a pending cross-objection as time-barred, while simultaneously adjudicating the main appeal, would yield an incongruous result, defeating the ultimate object of ensuring a complete and final adjudication between the parties.

9. The controversy before this Court essentially revolves around two questions: Firstly, whether respondent No.1 could maintain an independent civil suit for recovery of outstanding rent when the same relief was not sought in the ejectment petition under Section 13 of the Rent Ordinance; and secondly whether the liability for payment of arrears of rent could legally be fastened upon the present petitioner. Adverting to the first question, the record

unmistakably demonstrates that during ejectment proceedings, the petitioner had vigorously contested the matter, not on the footing of tenancy, but by claiming ownership and independent possession of the disputed premises. However, the learned Rent Controller conclusively determined the existence of the landlord-tenant relationship, and the said findings attained finality up to the august Supreme Court of Pakistan. Once the ejectment decree attained finality, the petitioner could no longer be permitted to re-agitate issues already settled by competent fora. Moreover, the petitioner's independent claim of ownership was also tested through a substantive civil suit, which was dismissed, and the dismissal attained finality after withdrawal of appeal. Thus, the petitioner failed to establish any lawful or independent right, title, or interest in the disputed premises. No doubt, ordinarily, arrears of rent constitute a matter triable by the Rent Controller against a tenant. However, the peculiar facts of the present case cannot be ignored. The petitioner remained in possession of the premises after unlawful transfer of possession by the original tenant, namely deceased respondent No.2. His possession was repeatedly held to be unauthorized, collusive, and detrimental to the proprietary rights of respondent No.1. Simultaneously, the original tenancy of respondent No.2 at the rate of Rs. 1,500/- per month stood conclusively established. In such peculiar circumstances, where the petitioner continued to occupy the premises without lawful authority, resisted ejectment proceedings up to the highest forum, delayed execution of the decree, and enjoyed possession without substantiating any lawful entitlement, the learned appellate Court rightly concluded that the burden of payment of outstanding occupation charges/rent should be shifted upon the petitioner, who remained the actual beneficiary of possession during the relevant period. Consequently, the cross-objections filed by respondent No.1 could not be discarded merely on technical grounds of limitation, particularly when the principal appeal itself remained pending adjudication and the matter regarding actual liability was integrally connected with the subject matter of the appeal. The precedents relied upon by learned counsel for the petitioner are clearly distinguishable on facts and

circumstances and, therefore, do not render any assistance to the petitioner. Hence both the questions are answered in favour of the decree holder. In view of the foregoing discussion, I have reached the inescapable conclusion that the findings recorded by the learned appellate Court neither suffer from any legal infirmity nor warrant interference in exercise of revisional jurisdiction.

10. Learned counsel for the petitioner has failed to point out any illegality, material irregularity, misreading or non-reading of evidence, or jurisdictional defect in the impugned judgment. Resultantly, the instant Civil Revision, being devoid of merit, is dismissed, with no order as to costs.

Announced.
21.05.2026.

J U D G E

Haider Shah, SSS (SB) Hon'ble Mr. Justice Muhammad Naeem Anwar.